



File

Republic of the Philippines
City of Lapu-Lapu
Sangguniang Panlungsod
Tel. No. 340-0017 • Zip Code: 6015



EXCERPT FROM THE MINUTES OF THE 69TH REGULAR SESSION OF THE 16TH SANGGUNIANG PANLUNGSOD OF THE CITY OF LAPU-LAPU HELD AT THE SESSION HALL ON MARCH 14, 2024

REGULAR SESSION NO. 69

PRESENT:

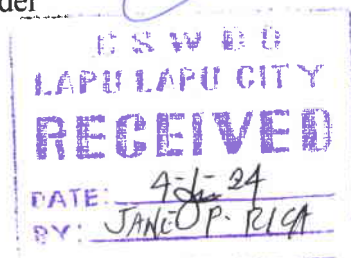
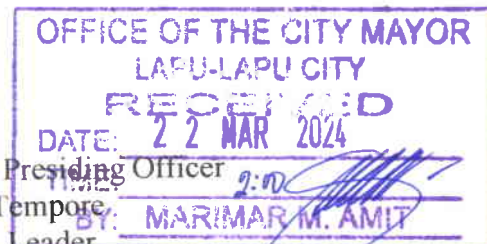
Hon. Celedonio B. Sitoy, M.D.
Hon. Annabeth D. Cuizon
Hon. Jan Vincent A. Dela Serna
Hon. Linda Susan C. Baring
Hon. Marciano A. Alforque, Jr.
Hon. Celestino C. Aying
Hon. Efren T. Herrera
Hon. Climaco A. Tatoy, Jr.
Hon. Jeorgen E. Book
Hon. Joseph T. Pangatungan
Hon. Emilio L. Galaroza, Jr., M.D.
Hon. Orlan Joseph C. Carungay

Vice Mayor & Presiding Officer
President Pro Tempore
Majority Floor Leader
Asst. Majority Floor Leader
Sanggunian Member
Sanggunian Member
Sanggunian Member
Sanggunian Member
Sanggunian Member
Sanggunian Member
Sanggunian Member (PPSK Rep.)

ABSENT:

Hon. Jasmine Marie K. Chan

Sanggunian Member (ABC Pres.)- O.B



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Proponent: HON. ANNABETH D. CUIZON

RESOLUTION NO. 16-2229-2024

After due deliberation of the Sangguniang Panlungsod of the City of Lapu-lapu, on motion of Hon. Annabeth D. Cuizon duly seconded by Hon. Linda Susan C. Baring,

RESOLVED, to enact, as it is hereby ENACTED the following:

ORDINANCE NO. 16-136-2024

AN ORDINANCE INSTITUTIONALIZING THE GRANT OF THE MID-YEAR AND YEAR-END CASH ASSISTANCE TO QUALIFIED SENIOR CITIZENS AND QUALIFIED PERSONS WITH DISABILITY IN THE CITY OF LAPU-LAPU, ESTABLISHING GUIDELINES THEREOF, AND FOR OTHER RELATED PURPOSES

WHEREAS, the Magna Carta for Senior Citizens and the Magna Carta for PWDs provide for certain privileges and incentives with due consideration to the additional needs of these sectors;

WHEREAS, the Local Government Code of 1991 mandates the provision of social welfare services for the marginalized;

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WHEREAS, the City of Lapu-Lapu is guided by the principle that those who have less in life should have more in law;

WHEREAS, it is the prime motive of the City of Lapu-Lapu, that the fruits of development should be spread out to all its inhabitants such as the senior citizens and the PWDs;

NOW THEREFORE, be it ordained by the Sangguniang Panlungsod of the City of Lapu-Lapu, that:

SECTION 1. TITLE. - This ordinance shall be known as “An Ordinance Institutionalizing the Grant of the Mid-Year and Year-End Cash Assistance to Qualified Senior Citizens and Qualified Persons With Disability in the City of Lapu-Lapu, Establishing Guidelines Thereof, and for Other Related Purposes”;

SECTION 2. THE CASH ASSISTANCE. – Mid-year and year-end cash assistance shall be granted to all qualified senior citizens and persons with disability in the amounts of Four Thousand Pesos (P4,000.00) and Three Thousand Pesos (P 3,000.00) respectively during every releasing schedule. The releasing of the mid-year cash assistance shall be not later than the 17th of June of every year and the releasing of the year-end cash assistance shall be not later than the 10th of December every year.

SECTION 3. QUALIFIED BENEFICIARIES. – Qualifications to avail of the cash assistance are the following:

A. SENIOR CITIZENS

- i. A holder of a valid and original Senior Citizen's Identification Card issued by the Office of Senior Citizens Affairs (OSCA) of the City of Lapu-Lapu duly signed by the Mayor and the OSCA Head.
- ii. Verified by the Commission on Election (COMELEC) as having an ACTIVE voting record.

B. PERSONS WITH DISABILITY

- i. A holder of a valid and original Person with Disability Identification Card issued by the City Social Welfare and Development Office- Persons with Disability Affairs Office (PDAO) of the City of Lapu-Lapu.
- ii. Verified by the Commission on Election (COMELEC) as having an ACTIVE voting record.



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C. No double availment of the cash assistance.

D. Beneficiaries who are both a senior citizen and a person with disability shall receive the full senior citizen cash assistance and One Thousand Pesos (P 1,000.00) PWD Cash Assistance during every releasing.

SECTION 3. APPLICATION. – The following documents shall be submitted to avail of the cash assistance:

A. SENIOR CITIZEN

- a. Accomplished application form from OSCA;
- b. A photocopy of their Senior Citizen's Identification Card;
- c. A photocopy of their Add Quality or ACEP (Ahong Cares Elderly and PWD Program) Card
- d. For senior citizens who are bedridden and/ or with impaired mental abilities, a medical certificate endorsed by the Lapu-Lapu City Health Department.
- e. COMELEC verification of ACTIVE voting record

B. PERSONS WITH DISABILITY

- a. An accomplished application form from PDAO;
- b. A photocopy of their PWD Identification Card;
- c. A photocopy of their Add Quality or ACEP (Ahong Cares Elderly and PWD Program) Card
- d. Original Copy of the Certificate of Disability signed by the City Health Officer and a photocopy of the medical records detailing the severity and classification of the disability.
- e. COMELEC verification of ACTIVE voting record;

C. For bedridden senior citizens and PWDs, a photograph shall be duly attached to the application.

D. For PWDs who are minors as well as senior citizens and PWDs who are either bedridden or have impaired mental abilities, their relatives may apply on their behalf provided that the following are submitted to the OSCA or PDAO:

- i. COMELEC verification that the relative has an ACTIVE voting record
- ii. Proof of relationship with the senior citizen or PWDs

SECTION 4. RELEASING OF THE CASH ASSISTANCE.

A. The OSCA and PDAO shall prepare the respective payrolls for the cash assistance. A separate payroll shall be made for PWDs who are minors, as well as senior citizens and PWDs who are either bedridden or have impaired mental abilities.



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Senior citizens and PWDs who are registered as of December 31st of the previous year, and living as of March 31st of the current year for the mid-year releasing; and living as of September 30th of the current year for the year-end releasing shall be included in the payroll.

B. For the senior citizens and PWDs whose death occurred after March 31st of the current year for the mid-year releasing, and September 30th of the current year for the year-end releasing, their relatives can claim the cash assistance at the CTO subject to the submission of the Certificate of Eligibility to Claim issued by OSCA for senior citizens or PDAO for PWDs.

The OSCA or PDAO shall issue a Certificate of Eligibility to Claim upon submission of the following:

1. Certified true copy of the senior citizen or the PWD'S death certificate *
 2. Proof of relationship to the deceased.
 - a. Certified true copy of birth certificate*
 - b. Certified true copy of marriage certificate*
 3. Senior Citizen or PWD ID of the deceased
- *Original document must be presented.

C. For the senior citizens and PWDs who are hospitalized during the releasing period, their relatives can claim the cash assistance at the CTO subject to the submission of the Certificate of Eligibility to Claim issued by OSCA for Senior Citizens or PDAO for PWDs.

The OSCA or PDAO shall issue a Certificate of Eligibility to Claim upon submission of the following:

1. Proof of Hospitalization within the releasing period.
 - For those admitted, the latest billing statement;
 - For those recently discharged, the discharge instructions, or the medical abstract, or the medical certificate
2. Proof of Relationship to the hospitalized senior citizen or PWD
 - a. Certified true copy of birth certificate*
 - b. Certified true copy of marriage certificate*
3. Photocopy of the Senior Citizen or PWDs ID (the original shall be presented to the respective office

*Original documents must be presented.

D. The OSCA, PDAO, and the City Treasurer's Office (CTO) shall announce the schedule of the releasing of cash assistance at the barangays at least two (2) weeks before the scheduled releasing.



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E. The first two days of the releasing the cash assistance shall be done in the public schools, barangay complex or in any spacious, well-ventilated, and covered area within the barangay premises most convenient to the majority of the persons with disability.

F. The cash assistance shall be claimed by the senior citizens and the PWDs whose name appears in the payroll. Letters of Authorization shall not be honored.

G. A special disbursing officer shall be assigned for the releasing of the financial assistance to PWDs who are minors as well as senior citizens and PWDs who are either bedridden or have impaired mental abilities. Cash assistance shall be delivered door to door. Safety precautions shall be in place for the protection of the beneficiary and the assigned Cash Disbursement Officer, accompanied by a CSWDO personnel and the GAD Focal of each barangay.

H. A special disbursing officer shall be assigned for senior citizens and PWDs who are deprived of liberty and are currently incarcerated in the Lapu-Lapu City Jail or any of the detention facilities within the City of Lapu-Lapu, OSCA, PDAO and the CTO shall arrange for a cash assistance releasing schedule with the Philippine National Police and the Lapu-Lapu City Jail Warden.

I. Cash assistance not claimed during the releasing at the barangays shall be claimed at the City Treasurer's Office within ten (10) working days from the first day of the releasing.

Failure to claim the assistance during the prescribed period, for whatever reason, is deemed as a waiver of right to receive the cash assistance. Unclaimed cash assistance shall be reverted to the government coffers.

SECTION 5. DELISTING OF BENEFICIARIES. - Previously approved beneficiaries shall be delisted from the payroll on the following bases:

- A. Failure to claim the Cash Assistance for two (2) consecutive releasing of all cash assistance extended by the City of Lapu-Lapu. This shall be done after the inventory of claimants has been completed by the OSCA and PDAO.
- B. In case of death. This shall be done upon presentation of a certified true copy of the original death certificate to the OSCA or PDAO.
- C. Beneficiaries who have changed address and have sent written notice to the OSCA or PDAO.
- D. Inactive voting record of the senior citizen or the head of their household and PWDs or of their parent or guardian. This shall be done after crosschecking and verification with the COMELEC-Lapu-Lapu City after every election.



However, with due regard to those who were not able to register or update their voters registration during the most recent COMELEC registration schedule, a grace period of until December 31, 2024 shall be extended to those beneficiaries or their parents/guardians/ head of the family to rectify the status of their voting record.

SECTION 6. INVENTORY OF CLAIMANTS, UPDATING OF THE MASTERLIST AND REPORTING. – The CTO shall furnish the OSCA and PDAO copies of the cash return official receipt. This is for the office to note the claimed and unclaimed financial assistance.

A. The OSCA and PDAO shall review the list of claimants from the two most recent releasing of the Cash Assistance. The senior citizens and PWDs who have not claimed for two (2) consecutive releasing of cash assistance, for whatever reason, shall be identified for delisting.

B. The barangays shall be furnished with the roster of names delisted from the payroll not later than two (2) weeks prior to the date of the next releasing of cash assistance.

C. Semi-annual reports on the number of qualified senior citizens and PWDs for Cash Assistance shall be submitted to the Chairperson of the Committee on Social Services, Senior Citizens and PWDS, on January of the next year, with indicators on:

- 1) Newly-approved Applicants;
- 2) Bedridden; and
- 3) Delisted with indicators on the reason for delisting.

D. The OSCA and PDAO shall regularly monitor all PWDs who are minors as well as senior citizens and PWDs who are either bedridden or have impaired mental abilities .

SECTION 7. GRIEVANCE COMMITTEE. - A Grievance Committee shall be created to settle any issues arising from the implementation of this ordinance. Grievances duly referred to the committee thru a written complaint sent thru the Office of the Senior Citizens Affairs (OSCA) or Persons with Disability Affairs Office (PDAO), and shall be addressed within a period of seven (7) working days from receipt thereof.

The Committee shall be composed of the following:

- A. Senior Citizens
 - i. The City Social Welfare and Development Officer
 - ii. The Office of Senior Citizens Affairs Head
 - iii. The Office of Senior Citizens Affairs Focal
 - iv. Representative from the City Attorney's Office



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- B. Persons with Disability
 - i. Head of the City Social Welfare and Development Office (CSWDO)
 - ii. Head of Persons with Disability Affairs Office (PDAO)
 - iii. Lapu-Lapu City Persons with Disability Federation President
 - iv. Representative from the City Attorney's Office

SECTION 8. IMPLEMENTATION. - The City Social Welfare and Development Office (CSWDO) - Office of the Senior Citizens Affairs (OSCA) and Persons with Disability Affairs Office (PDAO), and the City Treasurer's Office are designated to implement the provisions of this ordinance subject to the approval of the Mayor.

The OSCA and PDAO shall likewise endeavor to verify after every election the list of beneficiaries with the Commission on Elections -Lapu-Lapu City Field Office to ensure that the beneficiaries or the heads of their households/ parents or guardians are still listed as voters.

SECTION 9. APPROPRIATIONS. - The appropriations for the financial assistance shall be from the following:

- A. Senior Citizens- General Fund Proper Account Code 7611- 1-5-02-99-990-2 (Other MOOE-Elderly Citizens Welfare Program-GAD);
- B. Persons with Disability- General Fund Proper Account Code 7611-5-02-99-990-4 (Other MOOE- Disabled Persons Welfare-GAD)

SECTION 10. MANDATORY EVALUATION AND REVIEW. The Chairperson of the Committee on Social Services, Senior Citizens and PWD and the heads of the following offices: the CSWDO, the OSCA, the PDAO and the CTO shall conduct a mandatory evaluation and review of the ordinance and its implementation after three (3) years from the date of approval of this Ordinance.

SECTION 11. REPEALING CLAUSE. - All ordinances, resolutions, executive issuances, or rules and regulations, or parts thereof, whose provisions are inconsistent with or contrary to the provisions of this Ordinance, are hereby deemed repealed, amended, or modified accordingly.

SECTION 12. APPLICABILITY CLAUSE. - The provisions of existing ordinances, resolutions, executive orders which are not contradictory with this Ordinance are hereby adopted as an integral part of this Ordinance.



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SECTION 13. SEPARABILITY CLAUSE. - If for any reason any section or provision of the Ordinance, or any portion thereof, or the application of such section, provision or portion thereof to any person, group or circumstance is declared invalid or unconstitutional, the remainder of this Ordinance shall not be affected by such declaration and shall remain in force and in effect.

SECTION 14. EFFECTIVITY. - This ordinance shall take effect immediately upon its approval.

ENACTED,

March 14, 2023.

APPROVED.

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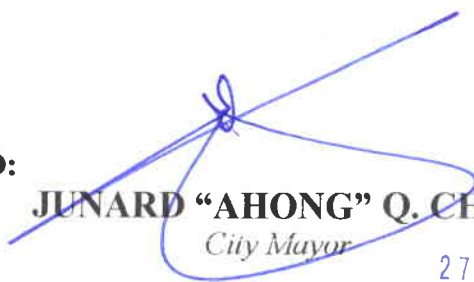
I hereby certify to the correctness of the above-quoted ordinance.


MYRA A. YCONG
SP Secretary

ATTESTED:


CELEDONIO B. SITOY, M.D.
Vice Mayor & Presiding Officer

APPROVED:


JUNARD "AHONG" Q. CHAN
City Mayor

27 MAR 2024